

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 13, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Allen and Mr. Collins. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Spiker moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 23, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from MUR Mixed Use with Residential Emphasis District to MUB Mixed Use with Business Emphasis District for the South ½ of Lot 1, the West 5.72 feet of the North 66 feet of Lot 1, all of Lots 2, 3 and 4, Block 201, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Warren Avenue and E. 23rd Street). Jan Nelson-Schroll referenced comments of concern regarding the proposed zone change that she expressed at the August 8th Public Services Committee meeting as well as documents (letter and photo packet) she had submitted at the Committee meeting (on file with City Clerk's office). She reiterated and commented on several of her concerns involving commercial/retail business activities and encroachments in residential neighborhoods; MUB vs. MUR landscaping requirements; demolition of the house within the block that she believes is a heritage structure and asbestos removal from same; need for alternative ideas to keep and restore the integrity of residential neighborhoods and heritage homes (example: structure relocation efforts), and the importance of historical-based tourism involving structures, and historic building revitalization and preservation efforts. Randy Byers, The Design Studio, agent for applicant, Meridian Trust Federal Credit Union, expressed his understanding of certain concerns stated by Ms. Nelson-Schroll and verified the property to be re-zoned does not involve the house that will be demolished. He advised the house is not located within an historic district and that any asbestos removal will be handled in accordance with required specifications, and commented on the natural

evolution of city growth generally and the economic feasibility difficulties of re-locating structures. Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Pierson. Comments followed on the proposed re-zoning area involving the applicant's drive-through and parking areas and not affecting the outcome of the house that may be demolished, and encroachment concerns balanced with business needs and requests. Motion carried. Voting "yes" -- all members of the governing body present. (#3956)

Ordinance granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and all persons, businesses, and industry within a portion of the City High West's certificated territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Due to postponement of the item from July 9, 2012, Mayor Kaysen referred the item back to Finance Committee and stated that it had come to his attention that High West Energy has requested the ordinance be withdrawn from the agenda. Mr. Brown, one of the ordinance sponsors, advised he was aware a letter had been submitted to the City Clerk from the attorney representing High West Energy requesting the ordinance be withdrawn from the Council's meeting agenda, and inquired whether a representative from High West Energy was present at the meeting to provide information regarding the request. Randy Reed, attorney for High West Energy, confirmed High West has requested this item be withdrawn explaining High West would like more time to continue communications with Cheyenne Light, Fuel and Power and the City, noting High West plans to come back at a later date to request a franchise and withdrawing the item now will alleviate the need to ask for additional postponements due to continuing discussions. Upon query by Mayor Kaysen to the other City Council ordinance sponsors, as well as other Council members present, no objection was voiced by Council members regarding the request to withdraw the item. Mayor Kaysen then announced the item was being withdrawn from the agenda.

[CA] RESOLUTION - Adopting a Schedule of Application Fees, Initial License Fees and Renewal License Fees for certain new classifications of City of Cheyenne Contractor Licenses and Building Trade Licenses. Motion (per Consent Agenda) carried. (#5417)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on County Projects to be submitted to the State Loan and Investment Board for the 2013-2014 Countywide Consensus Block Grant Funding. Motion (per Consent Agenda) carried. (#5418)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in agreement on a Garage Project for the Town of Burns to be submitted to the State Loan and Investment Board for the 2013-2014 Countywide Consensus Block Grant Funding. Motion (per Consent Agenda) carried. (#5419)

RESOLUTION - Supporting the City of Cheyenne's Application for Recreational Trails Program (RTP) Funds to create the North Cheyenne Community Park Trail System -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Valdez). Mayor Kaysen referred the item to Finance Committee. Reporting for Finance Committee, Mr. Brown advised the item was reviewed under other items for the agenda at the August 6th Finance Committee meeting and provisions of Title 2 of City Code have been met. Mr. Brown moved to adopt, seconded by Mr. Valdez. Jeff Wiggins,

Parks & Recreation Department, stated the grant is administered through the Wyoming State Parks and Cultural Resources Department and the grant request is to implement approximately 11,000 lineal feet of trails within North Cheyenne Community Park that would serve hikers, trail joggers and mountain bicyclists. He stated the estimated project cost is \$50,000 and the grant request will be \$35,000 with the City's grant match amount of \$15,000 being provided (donated) by area businesses. Motion carried. Voting "yes" -- all members of the governing body present. (#5419)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Grenville Subdivision, First Filing, a replat of the West 44 feet of Lot 3, Lots 4-7 and the East 10 feet of Lot 8, Block 1, Lake Minnehaha Addition and Lots 21-30, Block 1, Resubdivision of Lake Minnehaha Addition, and the alley between said lots, Cheyenne, Wyoming (located south of and adjacent to E. Lincolnway, west of Hot Springs Avenue) – referred to Public Services Committee (sponsor -- Ms. Ash).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 – referred to Finance Committee (sponsor – Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 – referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the City of Cheyenne to Approve and Accept the Fiscal Year 2011 Staffing for Adequate Fire and Emergency Response (SAFER) Grant from the United States Department of Homeland Security in the amount of \$846,090.00 (Award No. EMW-2011-FH-00743) – referred to Finance Committee (sponsor – Mr. Brown).

[CA] Juvenile Housing Agreement between Laramie County, Wyoming, and the City of Cheyenne – referred to Finance Committee.

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, to host the 2012-2013 season at the City-owned Ice and Events Center – referred to Finance Committee.

[CA] Media Sales Agency Agreement between the City of Cheyenne, Parks and Recreation Department, Cheyenne Stampede Junior "A" Hockey, LLC and SeeHear Media, LLC, for Static Visual Advertising at the City-owned Ice and Events Center – referred to Finance Committee.

[CA] Wind Energy Lease Agreement between the City of Cheyenne and Cheyenne Wind, LLC, for Windpower Facilities on the Belvoir Ranch – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5414 between the City of Cheyenne and Clean Harbors Environmental Services, Inc., for Hazardous Waste Disposal Services, Cheyenne Household Hazardous Waste Facility. Motion (per Consent Agenda) carried (amount not to exceed \$100,000.00) (#5414)

[CA] Consideration of Bid #M-1-13 for a contract between the City of Cheyenne, Engineering Department, and Kolbe Striping, Inc., Castle Rock, Colorado, for 2012 Epoxy Striping Project (2007-2010, 2011-2014 1% Sales Tax). Motion to accept bid (per Consent Agenda) carried (amount not to exceed \$129,025.00). (#5897)

[CA] Consideration of Bid #M-2-13 for a contract between the City of Cheyenne, Parks and Recreation Administration, and Pioneer Construction Co., Inc., Cheyenne, Wyoming, for the new concessions and toilet facilities for Pioneer Park Project (State and Local Grants funding) – referred to Finance Committee.

[CA] Consideration of Bid #R-4-13 for furnishing bulk Ice Control Product to the City of Cheyenne, Public Works Department (2007-2010, 2011-2014 1% Sales Tax) – referred to Finance Committee.

Appointments of Scott French and Amiee Reese to the Visit Cheyenne Board. Mr. Spiker moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement. Motion to acknowledge receipt (per Consent Agenda) carried.

[CA] Request by retail liquor licensee One East Sixteenth, LLC, 1601 Central Avenue, for a 90 day extension of the time frame condition placed on the license pertaining to a lease agreement with a restaurant establishment to operate within the building – referred to Finance Committee.

Announcement was made that the Laramie County Republican Party will be sponsoring a Calcutta to be held Saturday, September 22, 2012 beginning at 6:00 p.m. at the Kiwanis Community House, 4603 Lions Park Drive, Cheyenne, Wyoming, in conjunction with the Red State Rendezvous (Proceeds to benefit Laramie County Republican Party).

Announcement was made of a Public Meeting to be held Monday August 27, 2012 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for the purpose of receiving public comment on the submission of a 5307 Federal Grant to fund transportation services by Cheyenne Transit for Fiscal Year 2013.

Announcement was made of the Appointment of Michael A. Metzler to the Contractor Licensing Board to be confirmed August 27, 2012.

Under other business:

James Perrott Macneil made statements in opposition to any wind turbine farm development on the Belvoir Ranch; expressed Belvoir Ranch ownership concerns, and reviewed his family lineage.

In response to Council member inquiry regarding the removal of geese from Holliday Park due to a construction project at Lincolnway and Dunn Ave., Mayor Kaysen advised upon completion of the reconstruction of the intersection and the Greenway connector, the geese will be relocated back to the park.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:30 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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